

RESOLUTION OF EXPIRATION OF PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On April 13, 2023, the director of the Spanish Agency for Data Protection agreed to initiate ex officio preliminary investigation proceedings against the company OPENAI OPCO, LLC, in order to analyze the implications, in terms of personal data protection, of the ChatGPT Artificial Intelligence service.

SECOND: According to the information received by this Agency, ChatGPT (Chat Generative Pre-trained Transformer) is a chatbot application or language model fine-tuned with both supervised and reinforcement learning techniques, developed in 2022 by OPENAI OPCO, LLC. It is based on a global or general-purpose artificial intelligence language model, which, through its use, provides functional solutions to multiple and varied problems, as well as generative or content creation capabilities.

Technically, ChatGPT is currently defined as a Large Language Model (LLM), which is the term used to define a specific version of Deep Learning artificial intelligence models based on neural networks. The current version, ChatGPT-4, features a model with two thousand forty-eight neural layers and a total of six billion parameters, trained on large amounts of text to perform language-related tasks, from translation to text generation, and has been trained to hold conversations with any person, with its algorithms capable of understanding questions accurately and responding rigorously. This development requires the massive collection and storage of personal data for the purpose of training the underlying algorithms that operate the service.

THIRD: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to the supervisory authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD.

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FOURTH: On April 13, 2023, the European Data Protection Board decided to create a specific working group regarding the implementation of the Chat GPT service (Task Force ChatGPT) with the general mandate to promote cooperation and information exchange among supervisory authorities regarding the commitment with OpenAI and ongoing enforcement activities related to ChatGPT. The work of the Task Force ChatGPT is currently ongoing.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigation proceedings. Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Preliminary investigation actions

Article 67 of the LOPDGDD, in the wording in force at the time of the admission agreement of the present procedure, establishes the following regarding preliminary investigation actions:

- “1. Before the adoption of the agreement to initiate proceedings, and once the complaint has been admitted for processing, if applicable, the Spanish Agency for Data Protection may carry out preliminary investigation actions in order to achieve a better determination of the facts and circumstances that justify the processing of the procedure. The Spanish Agency for Data Protection shall act in any case when it is necessary to investigate treatments that involve massive traffic of personal data.
2. The preliminary investigation actions shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and may not exceed a duration of twelve months from the date of the admission agreement or from the date of the agreement.

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by which its initiation is decided when the Spanish Agency for Data Protection acts on its own initiative or as a consequence of the communication that has been sent to it by the supervisory authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law.”

III

Expiration of Proceedings

In relation to the preliminary proceedings, the Development Regulation of the LOPD (RLOPD), approved by Royal Decree 1720/2007, of December 21, in force in all that does not contradict, oppose, or prove incompatible with the provisions of the GDPR and the LOPDGDD, in its Article 122.4 states that “The expiration of the term without a decision having been issued and notified to initiate sanctioning proceedings will result in the expiration of the preliminary proceedings.”

In accordance with the provisions of the transcribed articles, the preliminary proceedings must be understood as expired if, after more than twelve months have elapsed from the date of admission of the complaint, no decision has been issued and notified to initiate sanctioning proceedings.

In the present case, the computation of the twelve-month maximum duration of the preliminary proceedings began on April 13, 2023, so they must be declared expired.

IV

Initiation of New Investigative Proceedings

On the other hand, Article 95.3 of the aforementioned LPACAP states:

“Expiration will not, by itself, produce the prescription of actions by the individual or the Administration, but expired proceedings will not interrupt the prescription period.

In cases where it is possible to initiate a new procedure due to the absence of prescription, acts and procedures whose content would have remained the same had the expiration not occurred may be incorporated into this new procedure. In any case, in the new procedure, the procedures for allegations, proposal of evidence, and hearing of the interested party must be completed.”

In this regard, the National Court, in its ruling of July 10, 2013 (JUR 2013\259250), considers that “the declaration of expiration of the preliminary investigative proceedings initiated by the Spanish Agency for Data Protection does not prevent that entity from initiating or restarting other preliminary investigative proceedings on the same facts, as long as the prescription period for the administrative infringement under investigation has not elapsed.”

In the present proceedings, the investigation has proven to be a process of enormous complexity both from a technical point of view and due to the volume of documentation that must be analyzed and studied.

Furthermore, account must be taken of the development of the work of the Task Force ChatGPT created by the European Data Protection Committee, referred to in the fourth fact of this resolution, which responds to the task of facilitating the coordination of external communication by the various authorities regarding ChatGPT's compliance activities, quickly identifying a list of issues that require a

common approach in that context, and finally, preparing a public report that describes the common positions and actions adopted among the authorities on the previously identified issues.

This report must be prepared as a priority throughout 2024 and must address important aspects that have arisen as a result of the investigations by the various authorities, such as transparency, legality, particularly in the context of data extraction, and the rights of the interested parties.

Given that the work of the aforementioned group is ongoing, as is the establishment of common harmonization criteria that must inform the actions of the various supervisory authorities, the continuation of the initiated investigative proceedings is necessary for their proper execution.

Consequently, since the facts under investigation are not prescribed, instructions are given to the General Sub-Directorate of Data Inspection to initiate new investigative proceedings.

Therefore, in accordance with the aforementioned, the director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO DECLARE the EXPIRATION of the present preliminary investigative proceedings.

SECOND: TO OPEN new investigative proceedings and incorporate into these new proceedings the documentation that integrates the preliminary proceedings declared expired by this act.

THIRD: TO NOTIFY this Resolution to OPENAI OPCO, LLC and to the complainant parties.

Against this resolution, which concludes the administrative route as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may file,

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conditionally, an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly an administrative contentious appeal before the Administrative Litigation Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Litigation Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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